

Laxmi Narayan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 February 2023 · WRIT-C No. 5061 of 2023 · **Writ dismissed on Clause 6.5 alternate remedy**

HEADNOTE

A writ challenging an electricity demand notice of Rs. 6,81,410 and the recovery citation issued on it is not entertainable where Clause 6.5 of the U.P. Electricity Supply Code, 2005 gives an efficacious representation before the Executive Engineer. The petition was dismissed on that alternate remedy without any examination of the demand or any order restoring supply.

FACTUAL SUMMARY

The petitioner, Laxmi Narayan, held electricity connection No. 674348223. On 15 December 2022 respondent no. 4 issued a demand notice, and on 19 December 2022 respondent no. 3 issued a recovery citation, together requiring Rs. 6,81,410. He sought quashing of both instruments and of the recovery, a restraint on coercive steps, and restoration of supply. Respondent no. 5 objected that he was already before the Consumer Forum and could represent to the Executive Engineer under Clause 6.5 of the Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ declined for Clause 6.5 representation

HOLDING

A representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer is an efficacious alternative to a writ against a demand notice. The Court dismissed the petition challenging the notice dated 15.12.2022 and the recovery citation dated 19.12.2022 for Rs. 6,81,410, and refused to examine the demand or to restore connection No. 674348223. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ for quashing of the demand notice and recovery citation, and for restoration of connection No. 674348223, was dismissed because a Clause 6.5 representation was an efficacious alternative. ¶ 1-2

article-226-alternate-remedy-up-supply-code-6.5 Article 226 was declined once the Court found an efficacious alternative remedy against the demand notice under the Supply Code. ¶ 1-2

clause-6.5-representation-executive-engineer The remedy accepted as barring the writ was a representation under Clause 6.5 to the Executive Engineer against the demand of Rs. 6,81,410. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 6,81,410 AND THE RECOVERY CITATION WERE LAWFUL, AND WHETHER CONNECTION NO. 674348223 SHOULD BE RESTORED

The writ was dismissed without examining the demand. ¶ 1-2

NOT DECIDED — WHETHER THE PETITIONER'S PENDING GRIEVANCE BEFORE THE CONSUMER FORUM INDEPENDENTLY BARRED THE WRIT

Raised by respondent no. 5; the dismissal rests on the efficacious alternative remedy. ¶ 1-2

